

Contentious Chamber

Decision on the merits 33/2025 of February 21, 2025

File number: DOS-2018-03758

Subject: decision on settlement following a complaint regarding alleged errors in the minor child's monitoring plan of the complainant and the handling of the plan via a digital school platform

The Contentious Chamber of the Data Protection Authority, composed of

Mr. Hielke HIJMANS, president sitting alone;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Having regard to the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Having regard to the internal rules as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Having regard to the documents in the file;

Has made the following decision regarding:

the complainant:

X, hereinafter "the complainant"; and

the party to the settlement:

Y, hereinafter "the party to the settlement".

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I.

Preliminary procedure for the settlement

I.1.

The complaint

1.

On July 19, 2018, the complainant filed a complaint with the Data Protection Authority ("DPA") against the party to the settlement.

2.

Regarding the subject of the complaint, the subsequent investigation by the Inspection Service and the procedure on the merits that followed this investigation, reference is fully made to the proposed settlement attached as an annex to this decision.

3.

The Contentious Chamber emphasizes the long processing time of the file, for which it has repeatedly apologized to both parties, which it reiterates once again herein.

I.2. The proposed settlement: response of the complainant

4.

On October 3, 2024, the Contentious Chamber sent a letter to the complainant informing her of its intention to proceed with a proposed settlement. The complainant was thus given the opportunity to communicate any remarks regarding the conditions of the proposed settlement by October 21, 2024.

5.

On October 28, 2024, the complainant responded to the letter from the Contentious Chamber. The complainant expressed her dissatisfaction with the course of the procedure and did not provide any concrete remarks regarding the proposed settlement.

6.

On October 31, 2024, the Contentious Chamber replied to the complainant's email, once again apologizing for the long processing time of the file; however, it emphasized that - despite the age of the file - its intention is indeed to achieve a constructive outcome.

I.3. The proposed settlement: procedure with the party to the settlement

7.

On November 7, 2024, the Contentious Chamber transmitted the proposed settlement to the party to the settlement - as fully included in the annex of this decision.

8.

On November 22, 2024, a copy of the file was requested and was provided on November 28, 2024.

9.

On December 27, 2024, the party to the settlement sent a letter to the Contentious Chamber containing several remarks regarding the proposed settlement.

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On January 13, 2025, the Contentious Chamber responds to these remarks, notably proposing a reformulation of the first condition and an addition to the third condition.

10.

On January 22, 2025, the party to the transaction responds that it accepts the transaction with the adapted conditions; these are reiterated in Section II of this decision. A transaction is thus formulated, formalized by this transaction decision. The deadlines referred to in the conditions set out in the transaction commence from the date of notification of this decision.

## II. Conditions of the Transaction

### II.1. Reformulated Conditions in the Context of the Transaction Procedure

11.

The Contentious Chamber specifies that in light of the smooth procedural conduct, the transaction procedure is divided into a transaction proposal on the one hand and this transaction decision on the other. This method ensures that the starting point and the endpoint of the procedure are clear for all parties involved, including the possibilities for appeal in the two distinct phases by the addition of appeal clauses. The adoption of a transaction decision also facilitates the transparency of the transaction procedure, as the Contentious Chamber fully opts for such transparency.

12.

During the transaction procedure, the party to the transaction expressed several objections regarding the wording of the initial conditions in the transaction proposal. The Contentious Chamber then proposed a modified wording of these conditions, to which the party to the transaction agreed.

13.

The Contentious Chamber specifies in this regard, and without any ambiguity, that the text of the first condition formulated in Section III.3.1 of the transaction proposal is fully withdrawn and that the following text completely replaces it. The party to the transaction commits solely to the execution of the condition set out below. The first condition is worded as follows:

"The defendant acknowledges that personal data must have been reproduced accurately, within the meaning of Article 5.1.d) of the GDPR. It must be able to demonstrate the accuracy of the personal data or verify it if a dispute arises, and it must take all possible measures to verify the accuracy if necessary, such as locating the author of a specific interpretation in order to verify the accuracy of the data (notably internally). This does not mean that the disputed personal data was by default inaccurate. The defendant commits to taking the necessary technical and organizational measures to ensure that such follow-up plans involving the processing of personal data contain only accurate information. The specific measures in this regard do not need to be communicated to the Contentious Chamber but must, however, be kept up to date internally and formally."

14.

The Contentious Chamber specifies in this regard, and without any ambiguity, that the text of the third condition formulated in Section III.3.1 of the transaction proposal is fully withdrawn and that the following text completely replaces it, notably emphasizing that this condition is an obligation of means. The party to the transaction commits solely to the execution of the condition set out below. The third condition is worded as follows:

"The defendant ensures that logging files are kept up to date regarding the individuals who make adaptations in the follow-up plans (as in the file), without this meaning that the identity of these individuals must be communicated among themselves or to the concerned parties. The defendant may take the necessary measures so that only a (limited) number of authorized individuals can, if necessary, identify who made the adaptations in this regard. The defendant explicitly informs the

Contentious Chamber that the necessary steps have been taken in this regard, no later than the 60th day after the notification of a transaction decision in this file.

If keeping the logging files and roles up to date requires extremely significant (technical) interventions and it turns out that these cannot be completed within the planned 60-day period, the defendant informs the Contentious Chamber within these 60 days of the measures taken and planned up to that point, including the consultations scheduled with Schoolplatform in this regard."

### III. Publication of the Decision

15.

Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the Data Protection Authority. However, it is not necessary for this purpose that the identification data of the parties be directly communicated.

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Annex – Transaction Proposal

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Your references

Our references

Annex(es)

Date

/

DOS-2018-03758

04/11/2024

Subject: Proposal for Settlement in the Case Concerning a Complaint Filed by  
Mrs. [...] against [...] (Application of Art. 100, § 1, 4° of the LCA)

Dear Sir/Madam,

The Contentious Chamber refers to the aforementioned case file. You have previously been informed of the existence of the file by registered mail dated November 26, 2019. The defendant submitted their reply on February 4, 2020.

The Contentious Chamber wishes to first and foremost apologize for the delay in processing this case.

In this case, an internal administrative situation has resulted in a processing time longer than average.

In the context of the large number of cases awaiting examination by the Contentious Chamber, which leads to long processing times for all cases, the Contentious Chamber has decided, pursuant to Article 100, § 1, 4° of the law establishing the Data Protection Authority ("LCA"), to submit by this letter a proposal for settlement in the referenced case ("settlement proposal"). In processing its cases, the Contentious Chamber must make careful choices in order to handle various (complaint) cases with the necessary diligence, which are of societal relevance. The Belgian legislator has emphasized the need for the Contentious Chamber to intervene selectively to ensure effective implementation.

Nevertheless, the Contentious Chamber has examined the file in detail and still wishes to achieve a constructive outcome for processing. In this way, despite the age of the file, all concerned parties can still derive a potential benefit—such as improving technical and organizational measures to avoid similar issues or grievances in the future.

In short, the defendant should commit to fulfilling three conditions for the settlement to take place, after which the file can be closed:

1. [The defendant acknowledges having made an error in the account of the facts by stating in the disputed follow-up plan that the complainant was using her son as "a pawn." The defendant commits to taking the necessary technical and organizational measures to ensure that such follow-up plans involving the processing of personal data contain only accurate information. The specific measures in this regard do not need to be communicated to the Contentious Chamber but must be kept up to date internally and formally.]

2. The defendant commits to taking the necessary technical and organizational measures to ensure that the proper management of the processing of personal data within the follow-up plans (similar to that of the case) can always be guaranteed. The specific measures in this regard do not need to be communicated to the Contentious Chamber but must be kept up to date internally and formally.
3. The defendant ensures that logging files are kept up to date regarding the individuals who make adjustments in the follow-up plans (as in the case), without this meaning that the identity of these individuals must be communicated among themselves or to the concerned parties. The defendant may take measures for this purpose.

3 M.B., January 10, 2018.

4 Chamber of Representatives of Belgium, Explanatory Memorandum of the Bill Establishing the Data Protection Authority, Doc. 2648/001 (54th legislature), available at: <https://www.dekamer.be/kvvcr/showpage.cfm?section=/flwb&language;=fr&cfm;=/site/wwwcfm/flwb/flwbn.cfm?lang=N&legislation;=54&dossierID;=2648, 51>; see also: E. Degraeve, "Title 11. Control Authority" in C. DE TERWANGNE and K. ROSIER, *The General Data Protection Regulation (GDPR) – 1st Edition*, Larcier, 2018, (593)607:

"[The control authority] can thus exercise its control missions and assess the follow-up to be given to any complaints that are addressed."

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### III.1. Preliminary: Facts and Procedure

Given the time elapsed since the last procedural step in this case, the Contentious Chamber provides a summary of the background in this procedure.

#### III.1.1. The Complaint

1. On July 16, 2018, the complainant filed a complaint with the Data Protection Authority against the defendant.
2. The subject of the complaint concerns the content of an educational "monitoring plan" for the son [...] of the complainant and access to it, as established by the school that is part of the defendant and falls under its responsibility. The monitoring plan also contained personal data of the complainant, in her capacity as mother and legal guardian of her son. In this case, the complainant alleges that the information about her contained in the monitoring plan had negative factual and legal consequences.
3. Specifically, according to the complainant, the monitoring plan contained information stating that she used her son [...] "as a pawn" "in communication with [her] ex-husband." This information allegedly had a negative effect on the complainant in a proceeding before the Youth Court involving the complainant, the complainant's ex-husband, and their common son [...]. In exercising her right of access to information, the complainant was not clearly informed about who added this information concerning her in the monitoring plan, or the defendant did not clarify this information. In the complaint, she writes: "I asked them [the defendant] to check who put this information in the report [...] So far, they have not been able to give me an answer to this question."
4. Following this response, the complainant also states that she questions the measures taken by the defendant regarding the security of personal data included in the monitoring plan. In the complaint, she writes: "I do not find it acceptable that the school allows everyone to access the same computer and cannot trace who enters what data into the system."
5. An excerpt from an email exchange between the complainant and a collaborator of the defendant is attached to the complaint; the accuracy of the account of this exchange is not disputed during the procedure before the Data Protection Authority ("DPA"). In a document attached to the complaint, a collaborator of the defendant ([...]) states in an email to the complainant: "[...] I cannot find out who made this addition to the file since there are indeed identifiers but no distribution according to who modifies what." In a subsequent email sent by the same collaborator to the complainant, it reads: "We still do not know who encoded this information. I am trying to find out and I will personally address the person concerned about this. In the meantime, I have also made the adjustment in their file and I am sending you the adapted version."
6. It should be noted that the initial complaint targeted a school that is an establishment of the defendant, which in turn is part of a group of schools; following the procedure before the Contentious

Chamber, the defendant designates itself as the data controller, notably responsible for the processing of personal data within the school mentioned in the initial complaint. The defendant was therefore not even designated as the data controller in the complaint but assumes this role since the school in question is entirely part of the defendant.

### III.1.2. Inspection Service Investigation

7. On July 30, 2018, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

8. On October 3, 2018, the Contentious Chamber decided to request an investigation by the Inspection Service, pursuant to Articles 63, 2° and 94, 1° of the LCA.

9. On November 12, 2019, the investigation by the Inspection Service was concluded, the report was attached to the file, and it was transmitted by the general inspector to the president of the Contentious Chamber (art. 91, § 1 and § 2 of the LCA).

10. The report contains findings related to the subject of the complaint and concludes that:

11. Under Article 4, point 12); Article 5, paragraph 1, point f); Article 33; and Article 34 of the GDPR, there are several negative objections against the defendant regarding the integrity of the personal data contained in the monitoring plan.

7 Complaint in file DOS-2018-03758, July 16, 2018, annex.

8 Defendant's reply conclusions of January 6, 2020, administrative document no. 39, p. 1; defendant's reply conclusions of February 4, 2020, administrative document no. 44, p. 1.2.

9 Investigation report from the Inspection Service in file DOS-2019-03758 dated November 12, 2019 ("Inspection Report"), p. 3: "The Inspection Service believes that the modification of the reports in question has been sufficiently demonstrated [...] the facts date from after May 25, 2018."

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12. The report further contains findings that exceed the scope of the complaint.

The Inspection Service finds, in broad terms, that:

- no record of processing activities within the meaning of Article 30 of the GDPR was initially communicated to the Inspection Service, after the latter requested this record from the defendant. It was only after a provisional finding in this regard informing the defendant of the absence of any indication that a record of processing activities had been established that the defendant transmitted an undated and unsigned document to the Inspection Service.
- the defendant did not fulfill its accountability obligation towards the Inspection Service when, according to the latter, there were indications that the integrity of personal data was not sufficiently protected due to inadequate security measures and, in this sense, that violations should be noted within the meaning of Article 5, paragraph 1, point f) in conjunction with Article 32, paragraph 1, point b) of the GDPR.
- the defendant processes personal data concerning vulnerable individuals (namely minors) and which could involve particular risks; the technical and organizational measures in this context should have been oriented towards these individuals, in the spirit and in the sense of Article 24, paragraph 1; Article 25, paragraph 1; and Article 32, paragraph 1 of the GDPR.
- no "proper record of incidents" has been maintained by the defendant within the meaning of Article 33, paragraph 5, read in conjunction with Article 32 of the GDPR, as the incidents described in the complaint were not mentioned or updated by the defendant or a person designated by it.

### **\*\*III.1.3. Treatment on the Merits\*\***

13. On November 26, 2019, the Contentious Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the case may be treated on the merits.

14. Based on the report of the Inspection Service, the Contentious Chamber decides to split the case into two distinct matters:

- Pursuant to Article 92, 1° of the LCA, the Contentious Chamber will make a decision on the merits regarding the subject of the complaint.
- Pursuant to Article 92, 3° of the LCA, the Contentious Chamber will make a decision on the merits,

following the findings made by the Inspection Service outside the scope of the complaint.

15. On November 26, 2019, the concerned parties are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

16. The deadline for receiving the defendant's response conclusions was set for January 6, 2020, that for the complainant's reply conclusions for January 21, 2020, and that for the defendant's reply conclusions for February 5, 2020.

17. On December 2, 2019, the defendant agrees to receive all communications related to the case electronically and requests a copy of the case file (Article 95, § 2, 3° of the LCA), which is transmitted to them on December 4, 2019. On December 9, 2019, the defendant requests that a document be provided again, as certain parts were reportedly not readable; this document is transmitted to them on December 10, 2019.

#### **\*\*III.1.4. Response Conclusions of the Defendant\*\***

18. On January 6, 2020, the Contentious Chamber receives the response conclusions from the defendant,

19. in which the latter notably asserts that the follow-up plan that is the subject of the complaint is part of its legal obligations under, among others, Article 46 of the Decree on Basic Education of February 25, 1997 (M.B. of April 17, 1997). Furthermore, the defendant specifies that this follow-up plan does not constitute "a static document" but rather that "it is adapted throughout the school year by the individuals who support the concerned student [...]"

20. The defendant adds that it has always transmitted the follow-up plan to the complainant, at their request, as the legal representative of the individual subject to this follow-up plan, and that, according to them, the right of access has also been sufficiently respected. At the request of the complainant, the allegedly erroneous information in the follow-up plan that is the subject of the complaint has also been "removed from the report"; thus, the right to rectification within the meaning of Article 16 of the GDPR has, according to the defendant, been correctly respected.

21. The defendant emphasizes that the follow-up plan "is in no way transmitted to external assistants, external bodies, or other third parties," except when parents explicitly request it.

Regarding the integrity of personal data during the activities of...

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treatment, the defendant further claims that it "is guaranteed by the software system [...]"

Schoolplatform. Only the relevant actors, the teachers and therapists concerned, have reading and modification rights in the student tracking system via a personal username and password."

22. In its response conclusions, the defendant asserts that "connection data" establishing which individuals ("only authorized persons") have accessed the tracking plan is available.

Furthermore, the defendant believes that "there has never been a breach of personal data" and therefore, no notification of any incident or any breach of personal data has occurred.

#### **III.1.5. Plaintiff's Reply Conclusions**

23. On January 16, 2020, the Disciplinary Chamber receives the plaintiff's reply conclusions in which she notably objects that it is "strange" that the tracking plan was communicated to her son's father by email. The plaintiff also questions the modifications made to the tracking plan and states: "who modified and/or completed the original tracking plan and when?" The plaintiff has questions about the "two versions of the 'tracking plan' in circulation."

24. The plaintiff further contests that access to the Schoolplatform platform is limited: "The data of the 'tracking plan' were clearly not only accessible via the 'schoolplatform' software system by users with a personal username and corresponding password."

#### **III.1.6. Defendant's Reply Conclusions**

25. On February 4, 2020, the Disciplinary Chamber receives the defendant's reply conclusions

26. in which it considers it important that the plaintiff - based on her statements in her own reply conclusions - "[expects] the school to monitor her son and that this information be recorded

somewhere." The defendant also asserts that it is important that this information "be recorded somewhere in a file."

27. The defendant then responds to the allegation that there are multiple versions of the tracking plan, as according to her, only the timing of the consultation by another legal representative (in this case, the father) has led to different versions of the tracking plan.

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The defendant states in this regard: "There is no 'original tracking plan', since the tracking plan is in itself a dynamic document." To support this assertion, the defendant refers to the different versions of the tracking plan at different points in time, as communicated to both parents in this context.

28. The defendant then emphasizes that the introduction of adaptations to the tracking plan through the platform [...] is by definition limited, given that it "is precisely a system that can only be used on the condition of having at least a username and a corresponding password." In this context, the defendant argues that at the time of filing the conclusions, she was working on implementing multifactor authentication. The defendant also denies that adaptations to the tracking plan would be "unverifiable," as the connection data "[allows] the school to verify who [modifies] something at what time."

30. In her reply conclusions of February 4, 2020, the defendant also adds arguments regarding the additional findings of the Inspection Service.

31. First, the defendant asserts that the record of processing activities she provided is the one "that is used in education."

32. The defendant then states: "the fact that for the period between 27/11/2018 and 20/08/2019, no step appears in the 'approximate timeline' of the 'record of processing activities [...]' does not mean that nothing was done during that interval."

33. The defendant also asks the Disciplinary Chamber to clarify whether she must record who added what value to the tracking plan; she refers in this context to the importance of this clarification for other educational institutions and to "the financial impact for this educational institution" if this were indeed to constitute an obligation under the GDPR.

34. Next, in her response to the elements included in the inspection report regarding the "risk-based approach," the defendant refers to the legal basis for the tracking plan: "The document aims to map the context in which the student completes their educational journey. The document is not intended to be used in a legal dispute between parents."

35. Regarding compliance with Articles 13 and 14 of the GDPR, the defendant also specifies that her website "contains a new privacy statement clearly outlining what processing the school carries out so that everyone is transparently informed about the modalities and purposes of personal data processing by the school."

36. Regarding the data protection officer, the defendant acknowledges that he was not involved in a timely manner. She states that it matters little whether

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"on what grounds a data protection officer works in relation to the data controller [...]". The defendant states that it is not excluded that the data subjects "may contact other individuals to exercise their rights, such as with a person responsible for information security [...]". According to the defendant, the DPO himself is the one who intervenes for the Katholiek Onderwijs Vlaanderen (Catholic Education of Flanders); in this context, the DPO has been properly notified to the APD, according to the defendant.

### III.2. The transaction procedure

37. On October 3, 2024, the complainant is informed that a transaction procedure will be initiated and that before this, she can first express her views on the matter.

38. On October 28, 2024, the complainant responds and expresses her dissatisfaction regarding the long processing time of this case. The Disciplinary Chamber had already apologized for this in its letter dated October 3, 2024, citing the large number of pending cases as well as a combination of administrative circumstances.

39. The Disciplinary Chamber responds to the complainant's letter of October 28, 2024, on October 31, 2024, reiterating its apologies for the delay and providing further justifications regarding the long processing time.

### III.3. Substantive conditions of the transaction proposal

#### III.3.1. Conditions based on the grievances raised in the complaint

##### Condition 1

Grievances raised by the complainant in her complaint:

In the follow-up plan for the son [...] of the complainant - according to the complaint - "it was indicated that I [i.e., the complainant] use my son as a pawn in communication with my ex-husband [...] this statement completely surprised me."

After addressing "the teacher and the principal," the defendant could not "provide any response" until the time of the complaint.

Legal qualification and analysis \* prima facie:

##### a.2.

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In itself, the complainant contests the accuracy of the information within the meaning of Article 5.1.d) of the GDPR. Since the information is related to her in the follow-up plan (at least indirectly because the complainant is the mother of the person subject to the follow-up plan), it may indeed concern personal data within the meaning of Article 4.1) of the GDPR.

Although the contestation of the accuracy of personal data by the person to whom this personal data can be attributed does not ipso facto mean that the personal data is therefore inaccurate, the procedure has highlighted serious indications at least to doubt the accuracy of the specific personal data.

More specifically, the school, or its collaborators, could not correctly determine (within a reasonable time) who had added the information to the follow-up plan.

All of this could be considered in the context where the follow-up plan that led to the complaint and is the subject of this case is part of the "legally mandatory action plan," according to the defendant, who refers to Article 46 of the Decree on Basic Education of February 25, 1997 (M.B. of April 17, 1997).

The defendant further explains that the subject of the complaint concerns a "follow-up plan" that falls within the framework of this legally mandatory action plan. The defendant emphasizes in this regard - rightly, according to the Disciplinary Chamber - that this follow-up plan is "not a static document" but "is adapted throughout the school year by the individuals who support the concerned student."

When the complainant therefore approached the defendant to exercise her right under Article 16 of the GDPR, the defendant was then required, as the data controller, to seriously and adequately examine this request from the complainant as a data subject and, if necessary, to respond accordingly. The defendant states in this case that, in her opinion, it was this right that the complainant exercised when she requested the revision of certain aspects of the follow-up plan. The defendant states: "This was therefore correctly respected. The follow-up plan was properly adapted after the complainant's request in this regard."

13 This legal provision is worded as follows: "Taking into account the developmental objectives imposed by the government, an action plan for one or more students together is drawn up in special education, based on their educational and pedagogical needs. This plan contains for a certain period, the pedagogical and didactic planning for the concerned student(s) and defines among other things the choice of developmental objectives that the class council wants to achieve on their behalf in the name of the school authority.

If applicable, the action plan describes how the work of the multidisciplinary team is projected and how social, psychological, orthopedagogical, medical, and paramedical assistance is integrated into the educational and teaching offer."

14 In the complaint, the complainant refers to an "individual treatment plan" - for the sake of clarity, the Disciplinary Chamber therefore always refers to the "follow-up plan."

15 Conclusions of the defendant dated January 6, 2020, administrative document no. 39, pp. 2-3.

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The complaint contains several parallel grievances: "Clearly, everyone at the school has access to the same information and everyone can make changes as they see fit. There is evidently no proper



protection against hacking either, which also makes me suspect that this information was introduced into their system without the school's knowledge [sic]." And further in the complaint: "However, I do not find it acceptable that the school allows everyone to access the same computer and cannot trace who enters what data into the system [...] I obviously find this very concerning because my personal information and that of my son can simply be treated lightly, modified, and, furthermore, sent to external entities, without any form of control or traceability."

#### Legal Qualification and Prima Facie Analysis:

The complainant's grievances regarding this specific issue relate to the integrity of personal data within the meaning of Article 5.1.f) of the GDPR and to the security (of processing) of personal data within the meaning of Article 32 of the GDPR, read in conjunction with Articles 24 and 25 of the GDPR.

It could be problematic that an employee of the defendant could not explain to the complainant how access management was conducted, giving her the (incorrect) impression that access management to the monitoring plans was non-existent, or at least poorly regulated or secured. In practice, however, the defendant has demonstrated throughout the proceedings that safeguards were indeed integrated to ensure adequate access management. In particular, an account on Schoolplatform is required with a unique password for all individuals who have access to the monitoring plan or who have 'write rights' to modify this monitoring plan. Furthermore, through a history of adaptations to the monitoring plan ("logging files"), the defendant demonstrates that only a limited number of individuals could make adaptations and had indeed done so. These included individuals who were part of the monitoring team for the complainant's son at the time of the events.

In this regard, the defendant asserts in its conclusions that the processing of personal data occurring within the framework of the monitoring plan is indeed subject to appropriate technical and organizational measures "so that security is guaranteed." According to the Disciplinary Chamber, the grievances raised in the complaint must therefore be somewhat nuanced, as it is first inaccurate to say that "everyone" can have access.

17 See also the inspection report, pp. 4-6.

18 Defendant's conclusions of January 6, 2020, administrative document no. 39, p. 3.

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access to the monitoring plan and to have writing rights, as claimed by the defendant.

These writing rights are limited "only to the teachers who accompany the student."<sup>19</sup> Furthermore, the platform used by the defendant's collaborators (Schoolplatform) provides at least authorization steps and minimal security, such that at least an identifier and a password are required to access the platform, and allows that certain documents/pages/sub-sites of the platform can also be made accessible only to a limited number of authorized persons, as was the case in this instance for the monitoring plan<sup>20</sup>. The defendant further specifies that access to the platform would also be conditioned on multifactor authentication<sup>21</sup>.

In this regard, the defendant also presents documents through which it demonstrates, according to its own statements, "that there is no question of unauthorized access to this data."<sup>22</sup> Contrary to the conclusion that could be drawn based on the defendant's initial communications in the file, the defendant indeed has a "logging file" that allows for consultation of which collaborator or actor made adaptations to the monitoring plan and at what time<sup>23</sup>.

According to the defendant, "the system [...] does not allow for displaying what has been modified"<sup>24</sup>.

In this sense, one could argue that the defendant has not taken sufficient technical and organizational measures regarding access and subsequent monitoring of this document containing personal data, the potentially sensitive nature of the personal data contained in these documents—particularly the personal data of minors and their health data—not having been sufficiently protected during processing.

Secondly, the complainant argues in her reply that "there are two versions of the 'monitoring plan'"<sup>25</sup>.

According to the defendant, however, it is impossible to find out what is meant by "the original monitoring plan." The defendant states: "There is no 'original monitoring plan,' as the monitoring plan is in itself a dynamic document."<sup>26</sup> In this context, the defendant indicates that each version of the monitoring plan always includes a date;

- 19 Defendant's conclusions of January 6, 2020, administrative document no. 39, p. 2.  
20 Nothing other than what the defendant claims has indeed been demonstrated, see the defendant's reply conclusions of February 4, 2020, administrative document no. 44, p. 3-4.  
21 Defendant's conclusions of January 4, 2020, administrative document no. 44, p. 4.  
22 Defendant's conclusions of January 6, 2020, administrative document no. 39, p. 3.  
23 Defendant's conclusions of January 6, 2020, administrative document no. 39, annex 3.  
24 Defendant's conclusions of January 6, 2020, administrative document no. 39, p. 2.  
25 Complainant's reply conclusions of January 16, 2020, administrative document no. 41, p. 2.  
26 Defendant's reply conclusions of February 4, 2020, administrative document no. 44, p. 2.

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#### III.4. Context: Procedural Situation of the Transaction Proposal and the Transaction

The Disputes Chamber has published a transaction policy on its website. It is available in French via this link:

<https://www.autoriteprotectiondonnees.be/publications/politique-de-transaction-de-la-chambre-contentieuse.pdf>.

This transaction policy explains precisely what a transaction consists of and how it is organized. The final transaction proposal will further legally frame the transaction.

This document is part of the first phase represented in the transaction policy:

For further information regarding the procedural situation, reference is made to the aforementioned internet link.

#### III.5. Written and Verbal Exchanges with the Parties

##### III.5.1. Written Exchanges

The transaction proposal constitutes the starting point of the transaction procedure. However, the conditions of this proposal may be specified or adapted during the subsequent course of the transaction procedure, especially if these adaptations bring improvements in light of data protection legislation. Such requests do not automatically imply an extension of deadlines.

The parties contact the Disputes Chamber in principle in writing when they deem it useful to make certain adaptations to the conditions of the transaction proposal. It is up to the

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Contentious Chamber to adapt the settlement proposal based on this communication made by the parties.

In this regard, a constructive attitude from the parties is encouraged. The Contentious Chamber expects that the requests will be reasonable and proportionate.

When the requests reveal that the likelihood of reaching a settlement is low, or even non-existent, from the perspective of the Contentious Chamber, it may be decided to withdraw the settlement proposal.

##### III.5.2. Verbal Exchanges

The defendant may address a request for verbal explanations regarding the settlement proposal or other communications to the Contentious Chamber, the assessment of the relevance of such verbal exchanges being left to the Contentious Chamber<sup>29</sup>.

It goes without saying that this is a favor, and the Contentious Chamber grants it and can adopt this choice only if it proves effective for the procedure.

A record will be established and will generally only state the existence of this verbal explanatory exchange.

The parties are free to participate in the verbal explanatory exchanges organized by the Contentious Chamber. The conversations are confidential. The content of the discussions cannot be disclosed to third parties.

### III.6. Deadline

The defendant is required to respond to the present settlement proposal before 24/12/2024.

### III.7. Existence of Other Data Controllers and/or Subcontractors

This settlement proposal is addressed solely to the defendant. No position is taken on whether and to what extent other parties are responsible for the potential violations that led to this settlement proposal.

29 "Discussions aimed at reaching a settlement" constitute a known legal practice in the world of regulators, see in particular by analogy the procedure before the Belgian Competition Authority provided for in Articles IV.55 et seq. ("Section 5 – Settlement Procedure") of the Economic Law Code of February 28, 2013 (M.B. 29/03/2013) as well as the mention made therein of such discussions aimed at reaching a settlement.

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### III.8. Validation of the Settlement

If the settlement proposal results in a formal settlement decision due to the explicit acceptance, within the aforementioned deadline, of the party to whom the settlement proposal is addressed, an appeal may be filed by the "aggrieved party"<sup>30</sup>.

The final settlement does not affect the right of any individuals who have suffered harm to claim damages before a civil court based in particular on Article 82 of the GDPR.

### III.9. Appeal Against the Settlement Proposal

Pursuant to Article 108, § 1 of the LCA, this decision on the settlement proposal may be appealed to the Market Court (Court of Appeal of Brussels) within thirty days from its notification, with the Data Protection Authority as the defendant.

Such an appeal may be filed by means of a contradictory petition which must include the mentions listed in Article 1034ter of the Judicial Code<sup>31</sup>. The contradictory petition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code<sup>32</sup>, or via the e-Deposit IT system of Justice (Article 32ter of the Judicial Code).

30 Pursuant to Article 108, § 1 of the LCA, this decision may be appealed to the Market Court (Court of Appeal of Brussels) within thirty days from its notification, with the Data Protection Authority as the defendant.

This appeal may be filed by means of a contradictory petition which must include the mentions listed in Article 1034ter of the Judicial Code. The contradictory petition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit IT system of Justice (Article 32ter of the Judicial Code).

31 "The petition must include, under penalty of nullity:

7° the indication of the day, month, and year;

8° the name, first name, domicile of the petitioner, as well as, where applicable, their qualifications and national register number or business number;

9° the name, first name, domicile and, where applicable, the quality of the person to be summoned;

10° the subject and a brief summary of the grounds of the request;

11° the indication of the judge who is seized of the request;

12° the signature of the petitioner or their lawyer."

32 "The petition, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed at the registry."

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Please accept, Madam, Sir, the assurance of my distinguished consideration.

[has been signed]

Hielke Hijmans

President of the Contentious Chamber